

Rahul Trivedi v. State of U.P. and others

Allahabad High Court · Division Bench · 7 January 2025 · 2025:AHC:3150-DB · Writ-C No. 94 of 2025 · **Writ disposed of; representation to be decided under Clause 6.5 within one month.**

HEADNOTE

Without examining merits, the Division Bench directed the Executive Engineer, PuVVNL Fatehpur to decide the petitioner's 21.07.2022 representation against bills raised after permanent disconnection, treating it as a Clause 6.5 Supply Code objection, within one month.

FACTUAL SUMMARY

The petitioner's electricity connection was permanently disconnected on 10 January 2010 and a disconnection slip was issued. On 14 October 2013 the Junior Engineer reported to the Executive Engineer that the connection stood permanently disconnected. Bills continued to be sent nonetheless. The petitioner represented to the Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited, Fatehpur on 21 July 2022. Counsel for the Electricity Department stated that the representation would be decided as one under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Without going into merits, the Court directed Respondent No. 3 (Executive Engineer, PuVVNL, Fatehpur) to decide the petitioner's representation dated 21.07.2022 within one month of presentation of a certified copy of the order, the Electricity Department having undertaken to treat it as a representation under Clause 6.5 of the Supply Code, 2005. ¶ 4-6

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Without examining merits, the Division Bench directed the Executive Engineer, PuVVNL Fatehpur to decide the petitioner's 21.07.2022 representation against bills raised after permanent disconnection, treating it as a Clause 6.5 Supply Code objection, within one month. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER BILLS RAISED AFTER THE 10.01.2010 PERMANENT DISCONNECTION WERE PAYABLE

Court expressly declined to examine merits. ¶ 5